

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
ROSHAWN R. MERISIER,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE DETECTIVE JASON
LEVY-Shield # 6945, POLICE DETECTIVE BRIAN
RITTO-Shield # 4361, POLICE DETECTIVE RAMON
GARICA-Shield # 6082, and JOHN DOES-Police Officers as
yet unidentified,

Defendants.

-----X

Index #
Date of filing:

Plaintiff designates Queens
County as the place of trial

SUMMONS

Basis of the venue is Locus of
Occurrence

Locus of the Occurrence
the intersection of 146th Street
and Archer Avenue

County of Queens

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

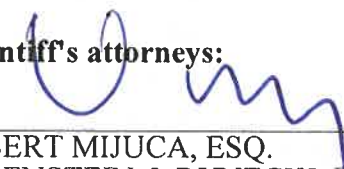
Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE DETECTIVE JASON LEVY-Shield #
6945
Tax ID # 928639
c/o New York City Police Department-
Narcotics Borough Queens South (NARCBQS)
1 Police Plaza
New York, New York 10007

POLICE DETECTIVE BRIAN RITTO-Shield #
4361
Tax ID # 942432
c/o New York City Police Department-
Narcotics Borough Queens South (NARCBQS)
1 Police Plaza
New York, New York 10007

Plaintiff's attorneys:


ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020

Defendant's address:

POLICE DETECTIVE RAMON GARICA-
Shield # 6082
Tax ID # 947650
c/o New York City Police Department-
Narcotics Borough Queens South (NARCBQS)
1 Police Plaza
New York, New York 10007

Dated: Brooklyn, New York
July 22, 2024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
ROSHAWN R. MERISIER,

COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE DETECTIVE JASON
LEVY-Shield # 6945, POLICE DETECTIVE BRIAN
RITTO-Shield # 4361, POLICE DETECTIVE RAMON
GARICA-Shield # 6082, and JOHN DOES-Police Officers as
yet unidentified,

Defendants.

-----X

Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and alleges as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR
NEGLIGENCE ON BEHALF OF ROSHAWN R. MERISIER**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Queens, City and State of New York.
2. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on October 11, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H hearing of the plaintiff was held on February 6, 2024.

6. That on August 8, 2023, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified, as police officers, detectives, agents, servants and/or employees.

7. That on August 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, THE CITY OF NEW YORK, owned the unmarked motor vehicle used as a New York City Police Department motor vehicle.

8. That on August 8, 2023, and at all times hereinafter mentioned, and upon information and belief, defendants, JOHN DOE-Police Officers as yet unidentified, operated the unmarked motor vehicle (**van**) used as a New York City Police Department motor vehicle.

9. That on August 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, JOHN DOE-Police Officers as yet unidentified, controlled the unmarked motor vehicle (**van**) used as a New York City Police Department motor vehicle.

10. That on August 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, JOHN DOE-Police Officers as yet unidentified, operated and controlled the unmarked motor vehicle (**van**) used as a New York City Police Department motor vehicle.

11. That on August 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendants, JOHN DOE-Police Officers as yet unidentified, operated the unmarked motor vehicle (**van**) used as a New York City Police Department motor vehicle, with the knowledge, permission and consent of defendant, THE CITY OF NEW YORK.

12. That on August 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, JOHN DOE-Police Officers as yet unidentified were employees of the defendant, THE CITY OF NEW YORK.

13. That on August 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the defendant, JOHN DOE-Police Officers as yet unidentified, operated and controlled the unmarked motor vehicle (**van**) used as a New York City Police Department motor vehicle. within the scope of their employment.

14. That at all times hereinafter mentioned, on the roadway at or about the intersection of 146th Street and Archer Avenue, in the County of Queens, City and State of New York, was and still is a public highway used extensively by the public in general.

15. That on August 8, 2023, and at all times hereinafter mentioned, and upon information and belief, the unmarked motor vehicle (**van**) owned by the defendant, THE CITY OF NEW YORK, operated by the defendant, JOHN DOE-Police Officers as yet unidentified, followed and then struck the plaintiff, ROSHAWN R. MERISIER, a lawful pedestrian at the aforementioned location.

16. The injuries from the mentioned accident, were due solely and wholly to the careless and negligent manner in which the defendants owned, operated and controlled the motor vehicle without this plaintiff in any way contributing thereto.

17. That by reason of the foregoing and the negligence of said defendants, this plaintiff sustained serious, severe, and permanent injuries to his limbs and body, still suffers and will continue to suffer for some time, great physical and mental pain and serious bodily injury; became sick, sore, lame and disabled and so remained for a considerable length of time.

18. That by reason of the wrongful, negligent and unlawful actions of defendants, as aforesaid, the plaintiff sustained serious injuries as defined in the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in said Insurance Law.

19. That by reason of the foregoing and the negligence of the said defendants, this plaintiff is informed and verily believes his aforesaid injuries are permanent and that he will permanently suffer from the effects of his aforesaid injuries and he will be caused to suffer permanent embarrassment and continuous pain and inconvenience.

20. That by reason of the foregoing, this plaintiff was compelled and did necessarily require medical aid and attention and did necessarily pay and become liable therefore, for medicines and upon information and belief, the plaintiff will necessarily incur similar expenses.

21. That by reason of the foregoing, the plaintiff has been unable to attend to his usual activity in the manner required.

22. That by reason of the wrongful, negligent and unlawful actions of defendants, as aforesaid, the plaintiff was severely injured, bruised and wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

23. This action falls within one or more of the exceptions set forth in CPLR §1602.

24. That as a result of the defendants' negligence as aforesaid, this plaintiff, ROSHAWN R. MERISIER, has sustained damages both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF ROSHAWN R. MERISIER**

25. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "24" inclusive with the same force and effect as if more fully set forth at length herein.

26. That on August 8, 2023, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ROSHAWN R. MERISIER, a pedestrian was lawfully present on the roadway at or about the intersection of 146th Street and Archer Avenue, in the County of Queens, City and State of New York.

27. That on August 8, 2023, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, ROSHAWN R. MERISIER, was being followed and then struck by an unmarked motor vehicle (**van**) used as a New York City Police Department motor vehicle owned by the defendant, THE CITY OF NEW YORK, and operated by

the defendant, JOHN DOE-Police Officers as yet unidentified. The defendants intentionally operated said vehicle so as to cause it to strike the plaintiff. Improperly used said vehicle as a means of apprehension. Thereafter, the plaintiff was approached and was assaulted and battered by the defendants, POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being jumped on top of repeatedly punched, and forcefully placed in handcuffs and thrown into an unmarked police vehicle (van). Then the plaintiff was brought to the 103rd Police Precinct and was placed in a holding cell for a period of time. Thereafter, the plaintiff was transported by ambulance to Jamaica Hospital where he received treatment for his injuries and held at the hospital under police custody until the next day. On August 9, 2023 the plaintiff was brought to Queens County Booking where he was arraigned and was released on his own recognizance at approximately 5:00 P. M.

28. That on August 8, 2023 , and at all times hereinafter mentioned and upon information and belief, plaintiff, ROSHAWN R. MERISIER, was assaulted and battered by defendants, POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

29. That on August 8, 2023, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

30. That on August 8, 2023 , and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, ROSHAWN R. MERISIER, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

31. That on August 8, 2023 , and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

32. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

33. By the reason of the foregoing, the plaintiff, ROSHAWN R. MERISIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ROSHAWN R. MERISIER**

34. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "33" inclusive with the same force and effect as if more fully set forth at length herein.

35. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, ROSHAWN R. MERISIER.

36. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

37. By the reason of the foregoing, the plaintiff, ROSHAWN R. MERISIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF ROSHAWN R. MERISIER**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at length herein.

39. That on August 8, 2023 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, ROSHAWN R. MERISIER.

40. That on August 8, 2023 , and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

41. That as a result of the aforesaid false arrest and confinement, the plaintiff, ROSHAWN R. MERISIER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

42. By the reason of the foregoing, the plaintiff, ROSHAWN R. MERISIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF OF ROSHAWN R. MERISIER**

43. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "42" inclusive with the same force and effect as if more fully set forth at length herein.

44. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the

consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

45. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ROSHAWN R. MERISIER.

46. That as a result of said intentional and negligent acts, the plaintiff, ROSHAWN R. MERISIER, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

47. By reason of the foregoing, the plaintiff, ROSHAWN R. MERISIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF ROSHAWN R. MERISIER**

48. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "47" inclusive with the same force and effect as if more fully set forth at length herein.

49. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, ROSHAWN R. MERISIER.

50. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

51. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

52. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

53. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

54. As a direct and proximate result of this unlawful conduct, the plaintiff, ROSHAWN R. MERISIER, sustained the damages hereinbefore alleged.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF ROSHAWN R. MERISIER**

55. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "54" inclusive with the same force and effect as if more fully set forth at length herein.

56. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

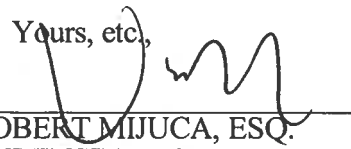
57. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE DETECTIVE JASON LEVY-Shield # 6945, POLICE DETECTIVE BRIAN RITTO-Shield # 4361, POLICE DETECTIVE RAMON GARICA-Shield # 6082, and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

58. By the reason of the foregoing, the plaintiff, ROSHAWN R. MERISIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, ROSHAWN R. MERISIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, ROSHAWN R. MERISIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, ROSHAWN R. MERISIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, ROSHAWN R. MERISIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, ROSHAWN R. MERISIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, ROSHAWN R. MERISIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, ROSHAWN R. MERISIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
July 22, 2024

Yours, etc.,


ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
ROSHAWN R. MERISIER
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 23RM08-08

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/ Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
July 22, 2024


ROBERT MIJUCA, ESQ.